

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3345

By: Williams

7 AS INTRODUCED

8 An Act relating to inmate assessment and evaluations;
9 amending 43A O.S. 2021, Section 3-704, which relates
10 to the assessment and evaluation of inmates;
11 providing risk, mental health and substance abuse
12 screenings for arrested persons; requiring review of
13 screenings by approved personnel; clarifying
14 procedures regarding the admissibility of certain
15 information and screening results; and providing an
16 effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 43A O.S. 2021, Section 3-704, is
17 amended to read as follows:

18 Section 3-704. After ~~an initial appearance~~ arrest, a person
19 accused of a ~~felony~~ criminal offense may submit to ~~an~~ approved risk,
20 mental health and substance abuse ~~assessment and evaluation~~
21 screenings which shall be administered and ~~scored~~ reviewed by
22 assessment personnel ~~certified~~ approved by the Department of Mental
23 Health and Substance Abuse Services. Any person lacking sufficient
24 skills to comprehend or otherwise participate in the ~~risk, mental~~

1 ~~health and substance abuse assessment and evaluation~~ screening
2 process shall have appropriate assistance. The court, district
3 attorney, arrested person and counsel for the arrested person shall
4 have access to the results of the ~~risk, mental health and substance~~
5 ~~abuse assessment and evaluation~~ completed screening. The Any
6 information gathered or the results of the ~~risk, mental health and~~
7 ~~substance abuse assessment and evaluation~~ any screening shall not be
8 admissible as evidence in ~~the~~ a criminal ~~case~~ matter unless
9 specifically waived by the defendant or for purposes of determining
10 sentencing and diversion options for a defendant who has pled guilty
11 and punishment is to be determined at the discretion of the court.
12 The court and the district attorney shall consider the results of
13 the risk, mental health and substance abuse ~~assessment and~~
14 ~~evaluation~~ screening to determine sentencing and diversion options
15 for the person.

16 SECTION 2. This act shall become effective November 1, 2026.

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18 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
19 OVERSIGHT, dated 02/26/2026 - DO PASS.
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